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Alex Murdaugh's Murder Convictions Were Just Overturned. The Reason Why Is Wild.

The announcement on Wednesday that South Carolina's state Supreme Court has [overturned Alex Murdaugh's 2023 conviction](#) for the murders of his wife, Maggie, and son, Paul, was the latest sensational twist in the story of one of the most notorious crimes of the past decade. Murdaugh's counsel successfully argued that Becky Hill, the court clerk during the murder trial, had tampered with the jury. While casual observers might be startled by this development, James Lasdun is not. Lasdun, who covered the case for the New Yorker and recently published [The Family Man: Blood and Betrayal in the House of Murdaugh](#), wrote about Hill's problematic behavior during the trial and the even sketchier memoir she published afterward about her time at the Colleton County Courthouse in Walterboro, South Carolina. Hill's book, *Behind the Doors of Justice: The Murdaugh Murders*, was later withdrawn by its publisher for reasons unrelated to the jury interference charges, and in yet another unrelated incident, Hill was sentenced to probation after pleading guilty to showing photographs from sealed court exhibits to a reporter and then lying about it in court.

I spoke to Lasdun on Wednesday about the woman who inadvertently overturned Alex Murdaugh's murder conviction and set the stage for yet another trial. Our conversation has been edited and condensed for clarity.

Laura Miller: You write in your book that you don't want to see the trial overturned on a procedural matter and that you believe Alex Murdaugh is guilty of murdering Paul and Maggie. (Alex Murdaugh, of course, continues to deny the charges.) But do you feel that the Supreme Court is right, that Becky Hill did tamper with the jury?

James Lasdun: Yes, I do, and I think it was the right decision. Obviously, it was a really difficult decision. There was jury tampering, and I think it shows a regard for due process that the court did overturn it. I would not like to see him go free on the basis of this. [This is unlikely, as Murdaugh is currently serving long sentences for his financial crimes.] I would have liked the trial to have been conducted properly and to have reached the truth in a much more unambiguous way than, to me, it did.

One of the things I found the most shocking in your book was Hill's intrusion of her religious fervor into the whole procedure. She was convinced she was chosen by God to make sure the correct verdict was reached. My jaw did hit the desktop a couple of times reading about her shenanigans in that department.

It was unbelievable. It's a funny combination of things. You have that religious fervor, which I think is real. I think she genuinely had a deep sense that good and evil were involved and that a conviction was the right decision at the highest level. You also had a weird patriotic element. She writes in her book about the flag waving outside the court as she's told that the jury has reached their verdict. And then behind that, or underneath it, or going along with it, is sheer, naked greed.

I mean, she talked openly to other people in the courthouse about wanting a guilty verdict so that it would sell more copies of her book because she wanted to buy a house on the lake. This combination of greed, religiosity, and phony patriotism is weirdly and depressingly familiar. What a waste of the money and time and effort that went into the trial.

So she wasn't discreet about any of this?

She was doing it openly—that's another piece of it that bothers me. To me that's symptomatic of the lack of oversight anywhere, which was exposed by this case.

No oversight at PMPED, the law firm where Alex worked. They could have busted him years earlier. They knew he'd done this phony thing with cashing checks that were supposed to go to his brother. They could have got him on that, they could have kicked him out, and Maggie and Paul would still be alive. But they didn't, because they ran the firm as a sort of brotherhood of lawyers, and nobody wanted to challenge that kinship and brotherly love. And also, he was making them a lot of money.

There was no oversight at the Palmetto State Bank where Russell Laffitte was robbing and stealing and conspiring with Alex to enable his crimes.

But here the buck did seem to stop with the Supreme Court, and I admire them for it because I think it's a courageous decision. I think it'll be pretty unpopular.

**I'm sure it will. What did you learn about Becky Hill during your reporting on the trial?
Usually the court clerk is a pretty low-key figure in such proceedings**

I did hear a lot about Becky Hill's presence during the trial, and no, it wasn't a quiet, retiring presence, from what I heard. She was like the hostess of the party, and she was adored by everybody. She was nicknamed Becky Boo, in that way that they have of nicknaming people they love in that part of the South, which is very charming, but you know, she was there in an official capacity, she wasn't there as everybody's buddy. And this was what happened as a result.

And you've also read her book.

Yes, it was withdrawn after her publisher learned that she had plagiarized the opening pages from a BBC reporter.

Tell me what the book is like.

It's a bit self-congratulatory, and it's drenched in that religiosity. She talks about going to Moselle [the Murdaugh home where the murders took place] with the jurors and about exchanging glances with them, and how at that moment they all knew that he was guilty. It's rather saccharine, a lot of it. But she did know that part of the world, and she had some history with the family because, of course, they were part of the court.

How soon did questions about the book emerge?

Almost as soon as it was published, Dick Harpootlian [one of Murdaugh's attorneys] was citing that passage about the trip to Moselle as evidence of jury tampering. At the time, I don't think anybody quite registered it or took it very seriously. But it turned out to be highly significant and just one of many instances of her misconduct.

Do you know why this tampering issue wasn't brought up during the trial?

I don't think there's much of a mechanism for doing that unless one of the jurors at the time had lodged a complaint with the judge. It was brought up at the end of the trial, and then later there was an initial hearing that was conducted by a former chief justice of South Carolina, a woman called Jean Toal, because by that time, enough of this stuff had surfaced that they had to take it seriously.

She conducted a hearing in which some of the jurors testified about these things that Becky Hill had said to them. One of them said that she felt a pressure to convict. And Jean Toal acknowledged that Becky Hill had committed serious misconduct, but, unbelievably, she decided it didn't really make any difference. She did leave the door open to a step up to the Supreme Court, though.

You write about this in your book, but you didn't seem to think it would make a difference.

I knew it would be addressed in more detail by the Supreme Court, and when they did finally hear it, which was a few months ago, it was clear then that they were taking it seriously. I mean, they had to. It's a televised proceeding. After that, it became clear to me and to others following the case that there was a chance that they were going to overturn it. I would have said maybe a 60 percent chance that they would not reverse it, but a 40 percent chance they would—a real chance. So I'm not totally surprised by this, although it is a staggering piece of news.

The judge handled most of the trial well, but at the end, Becky Hill had found out that one of the jurors was on the fence. And she contrived to have that juror removed from the jury on the very last day of the trial. She did that by essentially conjuring out of thin air a Facebook post by the woman's ex-husband in which the ex-husband said that this juror had spoken about the trial with him. However, she couldn't produce this Facebook post. I think she fabricated it or somebody she knew fabricated it, if it ever even existed. She wasn't able to show it to the judge. Nevertheless, the judge dismissed the woman from the jury.

I didn't think that he should have done that. There was no credible evidence. That woman became known as "the egg juror" because this was during the egg-price crisis and one of the jurors had chickens and brought eggs to the court to give to the others, and this woman, when she was dismissed, asked if she could go get her eggs from the jury room. She became a kind of comic character because of that, but actually, she'd have hung the jury. And they got rid of her. I fault the judge for that. Becky Hill supplied him with misinformation, but she didn't supply him with hard evidence.

She [the egg juror] has written a book about the case herself, and while I haven't read it, I know the main claims from it, and they're serious claims. She basically claims that she was set up to be kicked off the jury.

One of the things that I found particularly appalling, mentioned in your book, is Becky Hill writing about how "prayerful" this jury was, how they would all pray together at the beginning of the day for divine guidance. If the idea is that everybody else on the jury has been invested by God with their opinion, then anyone who differs is going to feel not just that they have another interpretation of the evidence, but that they are going against God, which just seems crazy.

That's very much how I saw it, when she wrote about them being the most prayerful jury she'd ever encountered and how she was praying along with them, even though she acknowledges you're not allowed to pray with the jury. She was conducting prayer sessions near the jury, apparently. This is a very religious community, and I don't want to knock anyone for their religion or for seeking guidance from it, but to have open prayer sessions is a different matter, and yeah, I think that surely subjects people who have differing opinions to an enormous pressure to conform.

Again, one of the jurors who was *not* kicked off testified at that first hearing that she felt pressured by Becky Hill, but also by other jurors. She didn't say specifically that it was religious pressure, but

it's hard not to see that as part of what would have been brought to bear on any juror.

Right, it's one thing if the other jurors are saying, *I'm tired of this trial. I want to go home. Can't you see that he's guilty?* But it's a completely different order of pressure to say, *God has told me that he's guilty, and if you disagree, then you are either cut off from God or you are claiming that my faith is false.*

There's no evidence that anyone was explicitly saying that, but implicitly, the fact that they're making such a religious issue of their deliberations, that they're bringing religion into the process of deliberation, which is supposed to be reason-based—that is worrying to me.

One of the things I've been thinking about today, since the story broke, is, OK, we know Becky has her reasons for wanting a guilty verdict. It'll help sell her book. She may think that, religiously, it's the right thing, and patriotically, it's the right thing. But then why was she so unconfident that there was going to be a conviction? Why did she feel that she needed to tip the scale?

I think that she felt what I felt, which was that it could have gone the other way, that there were real holes in the prosecution's argument. There were unanswered questions. The jury convicted, but I think it might very, very easily have gone the other way. Not because I think Alex didn't murder the victims. I think he almost certainly did. But I do think the case was really flawed, in the way it was presented to jurors.

Do you see other flaws in the conduct of the trial itself?

I think the decision at the very beginning not to allow them to take notes was pretty unbelievable. It was such a complex case, with so much technical and forensic evidence to weigh, all of which was pretty instrumental to whether you believed he murdered Paul and Maggie or not. They were encouraged to go on their gut instinct instead. But to make a decision under those circumstances, you needed to really understand the evidence.

The fact that they reached this verdict in a few hours, like under three hours, suggests to me that they weren't really weighing the evidence. They were weighing the man, and the man is a terrible man, so that's not gonna work in his favor.

As a measure of the complexity, and I don't think anyone else has mentioned this, but the judge himself, when he was handing down the sentence, made a really serious blunder in how he summarized what had happened to Alex Murdaugh on June 7th, the day of the murders. He said, "On a day when you confessed to stealing from your law firm ... " But that hadn't happened yet on June 7th. It didn't happen until September. If the judge can get confused and make a blunder like that during his sentencing remarks, how could the jury be expected to make any sense of it without being able to take notes, at the very least?

What do you think are the biggest gaps in the prosecution's case, issues that might have caused the verdict to go otherwise?

Well, Alex was talking to convicted criminals on the day of the murders, people connected with the Cowboys gang. We don't know why he was talking to them—perhaps it was just to do with buying more drugs that day—but for some reason, those calls got omitted from the timeline that was given to the jury.

There are unanswered questions about where Maggie's car was during the crimes. It was found at the house, but it seems like it was also down at the kennels at the time of the murders. There's some evidence that it got moved at the crime scene.

The biggest forensic thing was how Maggie's phone's raise-to-wake feature was not activated at the time Alex was alleged to have thrown it out of the window of his car. The prosecution was worried enough about this that they kept alluding to it and asking the jury to take it on trust that on this one occasion it somehow didn't light up. And they brought on their worst—just an incredibly bad—witness to testify to the fact that it might fail to light up, a guy who had no knowledge of phones at all, talking about how he had spent the weekend throwing his phone around his office and claiming that sometimes it wouldn't light up.

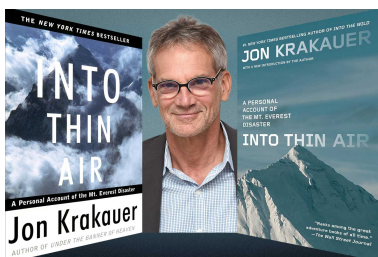
There were failures of the investigation, like why didn't law enforcement immediately search Almeda [the Murdaughs' second home], where they knew Alex had gone that night, since they claimed later that they were immediately suspicious of him? What was going on between Alex Murdaugh and the police chief from another jurisdiction who just showed up at the Moselle crime scene, and then for some reason, a couple of weeks after the murders, Alex writes a check to him for \$5,000, backdated? What was that for?

So the alternate scenario would be that some members of this Cowboys gang had come looking for Alex seeking money and then had shot Paul and Maggie?

That was what the defense were hoping to advance, and would have done if the state had called Cousin Eddie [Alex's alleged drug dealer] to the stand. Eddie had very conspicuously failed a lie detector test asking if he knew anything about the murders or had anything to do with them. Polygraphs are not admissible, but they could force him to testify that he was disbelieved.

But any such theory also has to be consistent with why Alex lied about being at the kennels shortly before the murders, and I don't know that the drug-deal-gone-wrong theory is very consistent with Alex lying. Why wouldn't he have just said he was there, but he must have left before these people arrived?

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You know, I feel 95 percent sure that he did kill Maggie and Paul and that it probably happened pretty much the way the prosecution said, but there's room there. I felt there was enough room for reasonable doubt that there would have been a hung jury. And if there hadn't been jury interference, there would have been a hung jury. That doesn't mean he's not guilty. It just means that due process had not been properly observed.

Becky Hill's behavior strikes me as a microcosm of the whole milieu there: charming, warm, Southern, everybody just gets warm syrup poured over them all the time, plus the piety, and then underneath that, greed and self-interest.

I don't think that they are inherently any more corrupt or greedy than anyone else. I think that they've substituted the honor system for proper oversight. Everything was done on the honor system. And that seems very bound up with kinship feeling, where everybody is everybody else's brother or sister or cousin. It's very beguiling in many ways. It's a vision of human society as a kind thing and a warm thing. But it's so vulnerable to abuse, and that's what Alex's career was founded on. He saw that you could take this system for such a ride. You could con people. Everyone would believe you. If you were a relatively powerful person in the system, you could be enabled by everyone around you. That's what happened to him at every stage, and so his crimes got worse and worse and worse.

If there had been some oversight or somebody willing to call his bluff, to say to this beloved guy, "You're cheating us," or "I don't believe you," or "You're not gonna get away with this again," Maggie and Paul would still be alive.

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